

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NAZARIO CARRION,

Plaintiff,

-against-

SARGEANT ROSARIO DOMINGO, POLICE OFFICER
ALEXIS MIRABA and THE CITY OF NEW YORK,

Defendants.

Index No.:

Plaintiff designates
BRONX County as the
place of trial.**S U M M O N S**The basis of venue is
Place of occurrence**To the above named Defendants:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Astoria, New York
May 21, 2024

Elliot L. Lewis, Esq.
SACCO & FILLAS, LLP.
Attorneys for Plaintiff
31-19 Newtown Avenue
Astoria, New York 11102
(718) 269-1620
elewis@saccofillas.com**DEFENDANTS:**THE CITY OF NEW YORK: One Centre St., NY NY 10007
SARGEANT ROSARIO DOMINGO: 257 Alexander Avenue, Bronx, NY 10454
POLICE OFFICER ALEXIS MIRABA: 257 Alexander Avenue, Bronx, NY 10454**FORWARD THIS IMMEDIATELY TO YOUR ATTORNEY OR INSURANCE COMPANY**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NAZARIO CARRION,

Plaintiff,

-against-

SARGEANT ROSARIO DOMINGO, POLICE OFFICER
ALEXIS MIRABA and THE CITY OF NEW YORK,

Defendants.

Index No.:

**VERIFIED
COMPLAINT**

Plaintiff, Nazario Carrion by his attorneys, SACCO & FILLAS, LLP, as and for his Verified
Complaint, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. The plaintiff, Nazario Carrion, at all times herein mentioned, was and still is a resident of the County of Bronx and the State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Nazario Carrion, a Notice of Claim in accordance with Section 50-e of the General Municipal Law.
4. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of Nazario Carrion, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.
5. Within ninety days (90) of December 11, 2023, a notice of claim in writing was served on behalf of Nazario Carrion, upon THE CITY OF NEW YORK on February 20, 2024 in

accordance with Section 50-e of the General Municipal Law.

6. That this action has been commenced within one year and ninety days from the date the claim accrued.
7. That a 50h Hearing of the plaintiff was conducted on May 17, 2024 and a physical examination was waived.
8. That more than ninety (90) days have elapsed since the claim was presented to the defendant and such claim has not been adjusted, compromised, negotiated and/or settled.
9. That on or about July 18, 2023 at approximately 10:00 P.M., plaintiff, Nazario Carrion, was lawfully upon a public thoroughfare in and/or about the vicinity of 654 East 12th Street, County, City and State of New York.
10. That at all times hereinafter mentioned, defendant POLICE OFFICER ALEXIS MIRABA – Shield Number 19878 wrongfully took into custody and arrested the plaintiff on July 18, 2023 at approximately 10:00 P.M., in or about the vicinity of 654 East 12th Street, County, City and State of New York.
11. That at all times hereinafter mentioned, defendant POLICE OFFICER ALEXIS MIRABA – Shield Number 19878 wrongfully took into custody and arrested the plaintiff on July 18, 2023 at approximately 10:00 P.M., in or about the vicinity of 654 East 12th Street, County, City and State of New York and transported plaintiff to the premises known as and by 257 Alexander Avenue, County of Bronx, City and State of New York, such premises being known as the 40th Precinct of the defendant, NEW YORK CITY POLICE DEPARTMENT.
12. That at all times hereinafter mentioned, defendant POLICE OFFICER ALEXIS MIRABA – Shield Number 19878 wrongfully took into custody, arrested and unlawfully detained the plaintiff on July 18, 2023 at approximately 10:00 P.M., and thereafter in or about the

vicinity of 654 East 12th Street, County, City and State of New York and transported plaintiff to the premises known as and by 257 Alexander Avenue, County of Bronx, City and State of New York, such premises being known as the 40th Precinct of the NEW YORK CITY POLICE DEPARTMENT.

13. That at all times hereinafter mentioned, defendant POLICE OFFICER ALEXIS MIRABA – Shield Number 19878 wrongfully took into custody, arrested and unlawfully detained the plaintiff on July 18, 2023 at approximately 10:00 P.M., and thereafter in or about the vicinity of 654 East 12th Street, County, City and State of New York and transported plaintiff to the premises known as and by 257 Alexander Avenue, County of Bronx, City and State of New York, such premises being known as the 40th Precinct of the NEW YORK CITY POLICE DEPARTMENT and maliciously ad unlawfully charged plaintiff with Unauthorized use of a Vehicle in the Third Degree under New York State Penal Code § 165.05(1) and Criminal Possession of Stolen Property in the Fifth Degree under New York State Penal Code §165.40.
14. That at all times hereinafter mentioned, defendant POLICE OFFICER ALEXIS MIRABA – Shield Number 19878 wrongfully took into custody, arrested and unlawfully detained the plaintiff on July 18, 2023 at approximately 10:00 P.M., and thereafter in or about the vicinity of 654 East 12th Street, County, City and State of New York and transported plaintiff to the premises known as and by 257 Alexander Avenue, County of Bronx, City and State of New York, such premises being known as the 40th Precinct of the NEW YORK CITY POLICE DEPARTMENT and maliciously ad unlawfully charged plaintiff with Unauthorized use of a Vehicle in the Third Degree under New York State Penal Code § 165.05(1) and Criminal Possession of Stolen Property in the Fifth Degree under New York

State Penal Code §165.40.

15. That at all times hereinafter mentioned, defendant POLICE OFFICER ALEXIS MIRABA – Shield Number 19878 wrongfully took into custody, arrested and unlawfully detained the plaintiff on July 18, 2023 at approximately 10:00 P.M., and thereafter in or about the vicinity of 654 East 12th Street, County, City and State of New York and transported plaintiff to the premises known as and by 257 Alexander Avenue, County of Bronx, City and State of New York, such premises being known as the 40th Precinct of the NEW YORK CITY POLICE DEPARTMENT and maliciously ad unlawfully charged plaintiff with Unauthorized use of a Vehicle in the Third Degree under New York State Penal Code § 165.05(1) and Criminal Possession of Stolen Property in the Fifth Degree under New York State Penal Code §165.40. and issued to plaintiff Desk Appearance Ticket at approximately 10:33 P.M., on July 19, 2023 and released plaintiff from arrest under plaintiff's own recognizance.
16. That the aforementioned criminal charges asserted and pending against the plaintiff were dismissed in their entirety due to existence of some other jurisdictional or legal impediment to conviction of the defendant for the offenses charged pursuant to New York Criminal Procedure Law § 170.30(1)(f).
17. That the aforementioned criminal charges asserted and pending against the plaintiff were dismissed in their entirety due to existence of some other jurisdictional or legal impediment to conviction of the defendant for the offenses charged pursuant to New York Criminal Procedure Law § 170.30(1)(f) on December 1, 2023 with a Certificate of Disposition being issued on December 11, 2023.
18. That the foregoing occurred with the supervision, permission, consent, authorization and

- acceptance of the defendant, SARGEANT ROSARIO DOMINGO – Tax ID #: 946189.
19. That defendant, POLICE OFFICER ALEXIS MIRABA is and was an employee of the defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT from on or about July 19, 2023 through on or about December 11, 2023.
20. That defendant, SARGEANT ROSARIO DOMINGO – Tax ID #: 946189 is and was an employee of the defendant, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT from on or about July 19, 2023 through on or about December 11, 2023.
21. That the foregoing occurred within the course, scope and duties of POLICE OFFICER ALEXIS MIRABA's employment with defendant THE CITY OF NEW YORK, and with THE NEW YORK CITY POLICE DEPARTMENT.
22. That the foregoing occurred within the course, scope and duties of SARGEANT ROSARIO DOMINGO's employment to and with defendant THE CITY OF NEW YORK and with THE NEW YORK CITY POLICE DEPARTMENT.
23. Solely as a result of the defendant's negligence, carelessness and recklessness, Nazario Carrion was caused to suffer severe and serious personal injuries to mind and body, and further, that Nazario Carrion was subjected to great physical pain and mental anguish.
24. That the foregoing was caused solely by the negligence of the defendants without any negligence on the part of the plaintiff contributing thereto.
25. By reason of the foregoing, Nazario Carrion was severely injured and damaged, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are believed to be permanent in nature and duration, and Nazario Carrion will be permanently caused to suffer pain, inconvenience and other effects of such injuries;

Nazario Carrion incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and Nazario Carrion will be unable to pursue Nazario Carrion's usual duties with the same degree of efficiency as prior to this accident, and has been damaged in his chosen career of security, all to Nazario Carrion's great damage.

26. As a result of the foregoing, plaintiff has become sick, sore, lame and disabled, has sustained severe and serious injuries, has suffered and will continue to suffer severe mental and nervous shock with accompanying pain, has required medical treatment and was and will be unable to attend to his usual duties for a long period of time; was obliged to and did expend large sums of money for medical care and attention and will be required to expend additional sums of money for medical care in the future to attend to his injuries which he believes to be of a permanent nature.
27. As a result of the foregoing negligence of the defendants, the plaintiff has expended and become obligated for the sums of money for medical care and attention for the plaintiff in an effort to cure him of his injuries and to alleviate his pain and suffering; was caused to incur damages.
28. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
29. That plaintiff Nazario Carrion is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF**AGAINST THE DEFENDANTS**

30. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
31. That said incident and resulting injuries to the plaintiff, Nazario Carrion, were caused solely as a result of the consequence of an intentional act on the part of the defendant, THE CITY OF NEW YORK, SARGEANT ROSARIO DOMINGO and POLICE OFFICER ALEXIS MIRABA, and its NEW YORK CITY POLICE DEPARTMENT, without any culpable conduct on the part of the plaintiff, Nazario Carrion, contributing thereto.
32. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF,**AGAINST THE DEFENDANTS**

33. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
34. Solely as a result of the defendants' servants, agents and/or employees' negligence, carelessness and recklessness in falsely arresting Nazario Carrion without probable cause. The plaintiff was caused to suffer severe and serious personal injuries to mind and body, and further, that Nazario Carrion was subjected to great physical pain and mental anguish pursuant to 42 USC 1983.
35. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,**AGAINST THE DEFENDANTS**

36. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
37. That the actions of the defendants THE CITY OF NEW YORK, SARGEANT ROSARIO DOMINGO, POLICE OFFICER ALEXIS MIRABA, and its NEW YORK CITY POLICE DEPARTMENT, constituted an assault on the person of the plaintiff, Nazario Carrion, in causing apprehension and fear of physical harm.
38. That said incident and resulting injuries were caused by the intentional tortious acts of the defendant THE CITY OF NEW YORK and its NEW YORK CITY POLICE DEPARTMENT, without any culpable conduct on the part of the plaintiff, Nazario Carrion, contributing thereto.
39. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,**AGAINST THE DEFENDANTS**

40. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
41. By reason of the above, the plaintiff's reputation has been greatly injured and he has been brought into public scandal, disrepute and disgrace, and has been greatly hindered and prevented from following and transacting his affairs and business, including damage to his chosen career of security, and has suffered great emotional trauma and harm, all to his damage.

42. That as a result of the aforesaid occurrence, the plaintiff, Nazario Carrion, was caused to and did sustain severe, serious and protracted injuries to his person and body.

43. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,

AGAINST THE DEFENDANTS

44. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein

45. That the defendants, THE CITY OF NEW YORK, SARGEANT ROSARIO DOMINGO and POLICE OFFICER ALEXIS MIRABA and its THE NEW YORK CITY POLICE DEPARTMENT, had actual and constructive notice of the Police Officer's and the Sergeant's prior vicious behavior and erratic propensities.

46. That said incident and resulting injuries were caused by the negligence of the defendants, THE CITY OF NEW YORK, SARGEANT ROSARIO DOMINGO, POLICE OFFICER ALEXIS MIRABA, and its NEW YORK CITY POLICE DEPARTMENT, in the hiring of its police officers, candidates and in the supervision and retention of Police Officers and Sergeants, without any culpable conduct on the part of the plaintiff, Nazario Carrion, contributing thereto.

47. That as a result of the aforesaid occurrence, the plaintiff, Nazario Carrion, was caused to and did sustain severe, serious and protracted injuries to his person and body.

48. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
AGAINST THE DEFENDANTS

49. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
50. That the aforesaid conduct on the part of the defendants THE CITY OF NEW YORK, SARGEANT ROSARIO DOMINGO and POLICE OFFICER ALEXIS MIRABA and its NEW YORK CITY POLICE DEPARTMENT, constituted a violation of the plaintiff, Nazario Carrion's civil rights under 42 USC 1983 in that the plaintiff was deprived of his rights, privileges and immunities secured to him by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.
51. That the defendant, its agents, servants and/or employees failed to hire, train, instruct, supervise, discipline or in any way control the defendant's officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein, and as to show a deliberate indifference to the constitutional rights of plaintiff.
52. That the aforesaid use of excessive force on the plaintiff by the defendants, and the subsequent false arrest and imprisonment of the plaintiff by the defendants, deprived the plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of

the plaintiff under the Fourth Amendment to the United States Constitution.

53. That as a result of the aforesaid occurrence, the plaintiff, Nazario Carrion, was caused to and did sustain severe, serious and protracted injuries to his person and body.

54. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
AGAINST THE DEFENDANTS

55. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

56. The defendants THE CITY OF NEW YORK, SARGEANT ROSARIO DOMINGO and POLICE OFFICER ALEXIS MIRABA, and its NEW YORK CITY POLICE DEPARTMENT commenced or continued a criminal proceeding against the Plaintiff without probable cause and in order to cover the wrongful acts of these defendants that they arrested the Plaintiff who was an innocent bystander to the underlying events.

57. The criminal proceeding commenced against the Plaintiff by the defendants was terminated in favor of the Plaintiff.

58. The criminal proceeding commenced and continued against the Plaintiff by the defendants was without probable cause in that the allegations against the Plaintiff were patently false and without any foundation such as proof of ownership by a witness alleging theft, and it was clear that the Plaintiff was an innocent bystander to the underlying events in question.

59. The defendants acted with actual malice in that the proceeding was initiated and continued to cover the wrongful acts of these defendants and the criminal action was filed with a

purpose other than adjudicating a criminal claim, and to cover up the fact that the Plaintiff was a mere innocent bystander to the underlying events.

60. That as a result of the aforesaid occurrence, the plaintiff, Nazario Carrion, was caused to and did sustain severe, serious and protracted injuries to his person and body, including psychological damage and damages to his ability to pursue his career in security.

61. Due to actions of the defendants, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
AGAINST THE DEFENDANTS

62. Plaintiff, Nazario Carrion, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

63. The defendants issued process to the plaintiff of a criminal nature and in particular a Desk Appearance Ticket and other process including but not limited to Criminal Complaints.

64. The defendants in issuing process to the Plaintiff did so with intent to do harm without excuse or justification, and continued process against the Plaintiff despite the fact that the defendants knew the Plaintiff to be an innocent bystander to the underlying events.

65. The defendants is issuing process to the Plaintiff used such process in a perverted manner to obtain a collateral objective and in particular to cover up the wrongful conduct by these defendants in arresting the Plaintiff when they knew or should have known that there was no basis for arrest and prosecution and that the Plaintiff was an innocent bystander to the underlying events.

WHEREFORE, the plaintiffs demand:

a. judgment awarding damages on the first cause of action, in an amount exceeding

the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

b. judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

c. judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

d. judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

e. judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

f. judgment awarding damages on the sixth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

g. judgment awarding damages on the seventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

h. judgment awarding damages on the eighth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

i. judgment awarding damages on the ninth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

h. interest, the costs and disbursements of this action, together with such other and

further relief as to this Court seems just and proper.

Dated: Astoria, New York
May 21, 2024

A handwritten signature in black ink, appearing to read 'Elliot L. Lewis', is written over a horizontal line.

Elliot L. Lewis, Esq.
SACCO & FILLAS, LLP.
Attorneys for Plaintiff
31-19 Newtown Avenue
Astoria, New York 11102
(718) 269-1620
elewis@saccofilias.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

NAZARIO CARRION,

**ATTORNEY
VERIFICATION**

Plaintiff,

-against-

SARGEANT ROSARIO DOMINGO, POLICE OFFICER
ALEXIS MIRABA and THE CITY OF NEW YORK,

Defendants.

Elliot L. Lewis, Esq., an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of SACCO & FILLAS, LLP, the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my
own knowledge except as to the matters therein stated to be alleged on information and belief and
that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the County
of Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are
correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is
in affirmant's possession, and other pertinent data relating thereto.

Dated: Queens, New York
May 21, 2024



Elliot L. Lewis, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

NAZARIO CARRION,

Plaintiff,

-against-

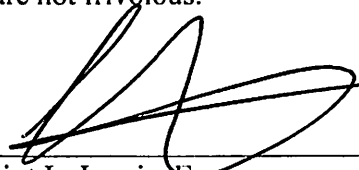
SERGEANT ROSARIO DOMINGO, POLICE OFFICER
ALEXIS MIRABA and THE CITY OF NEW YORK,

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Astoria, New York
May 21, 2024



Elliot L. Lewis, Esq.
SACCO & FILLAS, LLP.
Attorneys for Plaintiff
31-19 Newtown Avenue
Astoria, New York 11102
(718) 269-1620
elewis@saccofillas.com